

		Plaintiff produced no evidence showing Defendant had prior actual notice of any alleged defect or issues with the trench gutter. Regarding constructive notice, Plaintiff produced no evidence regarding constructive knowledge other than the fact the trench gutter existed without change since 1975. No evidence was produced regarding it being a "dangerous condition." Plaintiff has not met the transferred burden on the notice issue. The motion is GRANTED based on lack of actual and/or constructive notice as well. Defendant to give notice.
7	Kwok v. Genera Corporation	Cont. to 9/28
8	Young v. FCA US, LLC	O/C
9	Ciotti vs. Public Storage Operating Company	Defendant Public Storage Operating Company's ("Defendant") motion to compel arbitration is GRANTED. "Under both the FAA and California law, arbitration agreements are valid, irrevocable, and enforceable, except upon such grounds that exist at law or in equity for voiding any contract. [Citation.] Such challenges to the validity of arbitration agreements can be divided into two types. [Citation.] One type specifically challenges the validity of the agreement to arbitrate. The second challenges the contract as a whole, either on a ground that directly affects the entire agreement or on the ground that the illegality of one of the contract's provisions renders the whole contract invalid. (<i>Ibid.</i>)" (<i>Winter v. Window Fashions Pros., Inc.</i> (2008) 166 Cal. App. 4th 943, 947 ("Winter").) "As a matter of federal law, arbitration clauses are "separable" from the contracts in which they are embedded.' " [Citation.] . . . a challenge to the arbitration clause itself must be decided by the court. [Citation.] Nevertheless, a court still must consider one type of challenge to the overall contract, i.e., a claim that the party resisting arbitration never actually agreed to be bound." (<i>Winter, supra</i>, 166 Cal. App. 4th at 947-48.) "Only 'generally applicable contract defenses, such as fraud, duress, or unconscionability, may be applied to invalidate arbitration agreements without contravening § 2 of the FAA." (<i>Giuliano v. Inland Empire Pers., Inc.</i> (2007) 149 Cal. App. 4th 1276, 1285 ("Giuliano").) "[W]e must broadly construe the phrase, "evidencing a transaction involving commerce," because the FAA "embodies Congress' intent to provide for the enforcement of arbitration agreements within the full reach of the Commerce Clause. Its general applicability reflects that '[t]he preeminent concern of Congress in passing the Act was to enforce private agreements into which parties had entered....' [Citation.] We have accordingly held that these agreements must be 'rigorously enforce[d].' [Citations.]" [Citation.] In determining whether the employment agreement involved interstate commerce, the parties' subjective intent is not the determining factor. "[E]videncing a transaction involving

commerce” (9 U.S.C. § 2) simply means that “the ‘transaction’ in fact ‘involv[e]’ interstate commerce, even if the parties did not contemplate an interstate commerce connection.” (Giuliano, *supra*, 149 Cal. App. 4th at 1286.)

On a motion to compel arbitration, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (*Brennan v. Opus Bank*, 796 F.3d 1125, 1130 (9th Cir. 2015).) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C.A. § 4; *Dean Witter Reynolds, Inc. v. Byrd*, 470 U.S. 213, 218 (1985) [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”])

“The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 (“*Engalla*”); *Green Tree Financial Corp.-Alabama v. Randolph* (2000) 531 U.S. 79, 91-92.)

Defendant has met its initial burden by producing a valid arbitration agreement, which covers the issues in Plaintiff’s Complaint. (Complaint, Ex. 1.; Gonzalez Decl., Ex. A.) The burden transfers to Plaintiff to show by a preponderance of the evidence any defense to the agreement. (*Engalla, supra*, 15 Cal.4th at 972.)

Plaintiff argues the Agreement was both procedurally and substantively unconscionable.

“The unconscionability doctrine has both procedural and substantive elements, “the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” [Citation.] Both must be shown for the defense to be established, but not necessarily in the same degree. [Citation.] We evaluate unconscionability on a sliding scale, so that the more substantively one-sided the contract term, the less evidence of procedural unconscionability is required to conclude that the term is unenforceable, and vice versa. [Citation.] “The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” [Citation.] When unconscionability is shown, the trial court has discretion either to refuse to enforce the contract or to strike the unconscionable provision and enforce the remainder of the contract.” (*Davis v. Kozak* (2020) 53 Cal. App. 5th 897, 905.)

“Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the